

		\$95,504.53 total PAGA penalties (\$71,628.40 to LWDA). Plaintiff is ordered to submit <u>by June 4, 2026</u> a proposed order and judgment (including the above amounts) <u>with all exhibits attached</u> (settlement agreement; three amendments thereto; and notice letter (including the above amounts)). The final accounting hearing is scheduled for <u>February 4, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
10	Rodgers v. No Ordinary Moments, Inc. 2023-01349601	Off calendar.
11	Rodriguez v. Han.Sam Corp dba River's Edge Pharmacy 2026-01542228	<u>Defendant Han.Sam Corp dba River's Edge Pharmacy's Motion to Compel Arbitration</u> Defendant Han.Sam Corp dba River's Edge Pharmacy moves for an order compelling plaintiff Cindy Rodriguez to arbitrate her individual claims and dismissing her class allegations. For the following reasons, defendant's motion is denied. The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i> <i>Existence of an arbitration agreement</i> A court resolves a dispute regarding the existence of an arbitration agreement using a three-step burden-shifting process. <i>Espejo v. Southern California Permanente Medical Group</i> (2016) 246 Cal.App.4th 1047, 1056. "The arbitration proponent must first recite verbatim, or provide a copy of, the alleged agreement. (Cal. Rules of Court, rule 3.1330; <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 219, 105 Cal.Rptr.2d 597.) A movant can bear this initial burden 'by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature.' (<i>Espejo, supra</i>, 246 Cal.App.4th at p. 1060, 201 Cal.Rptr.3d 318.) At this step, a movant need not 'follow the normal procedures of document authentication' and need only 'allege the existence of an agreement and support the allegation as provided in rule [3.1330].' (<i>Condee, supra</i>, at pp. 218-219, 105 Cal.Rptr.2d 597.) [¶] If the movant bears its initial burden, the burden shifts to the party opposing arbitration to identify a factual